

		the time of the original application, without offering any justification for its failure to present them earlier). Here, on April 20, 2026, Defendant moved for a protective order regarding Plaintiff's notice of deposition and document request. ROA 325. Defendant sought the protective order on the grounds that Defendant was detained in China and was not free to travel to appear for deposition. ROA 325, ¶ IV. Defendant's sworn declaration in support of his motion for a protective order presented testimony that supported these facts. ROA 325, Decl. of Helen Quan, Esq., ¶¶ 6-9. On May 19, 2026, during an Informal Discovery Conference facilitated by the Court, the parties submitted on the Court's tentative ruling denying Defendant's motion for a protective order and ordering Defendant to appear for deposition within thirty (30) days (June 18, 2026). ROA 333. In support of the present motion, Defendant presents exhibits that support Defendant's claim of unavailability due to incarceration in China. ROA 341, Exh. A. While the exhibits may not have been provided with Defendant's application, the essential elements of Defendant's incarceration were included in the original declarations in support of Defendant's motion for a protective order and were duly considered by the Court. Thus, the Court finds that Defendant's application for reconsideration presents no new or different facts, circumstances, or law that the Court did not consider in making its tentative ruling, to which Defendant already submitted. <i>See</i> ROA 333. Accordingly, Defendant's Motion for Reconsideration is DENIED. Clerk shall give notice.
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7.	<u>30-2023-01330408-CU-IC-CJC</u>	
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